

Mechanism	Evidence Needed	Result / Legal Effect
1. Uneven Start / Baseline Failure	Pre-existing ranking, classification pressure, stigma spillover, developmental asymmetry	Neutrality already broken → heightened first-stage duty
2. Information / Developmental Asymmetry	Staff control classification; child cannot self-activate pathway; age/developmental context	Duty attaches at intake
3. First Actor / Control Point	Intake report; signal received; who received it; classification applied	Discretion materially shapes downstream pathway
4. Misclassification / Wrong-Category Response	Sexualized signal classified as “teasing,” “peer conflict,” “tickling,” “attention,” etc.	Protected pathway not activated → duty suppressed
5. Capacity Proven / Comparator Lock	Same institution or comparable system classifies early in LGBTQ / race / disability / bullying domains	Non-application shown; incapacity defense weakened
6. Breach / Duty of Care	Stronger pathway available but not activated; comparator shows correctable condition	Duty breached at intake
7. Notice Suppression	No Title IX designation; fragmented logs; no aggregation; no pattern recognition	Legally actionable notice structurally blocked

8. Causation / Structural Continuity	Repeated incidents; continued exposure; outcome collision; later harm	Classification failure → continued exposure → predictable downstream harm
9. Intent Not Required	Pattern of downgrades; structural incentive to minimize burden; ordinary discretionary routing	Breach can occur without proving bad motive

Best compression

uneven start

- staff holds classification power
- child cannot self-activate protected pathway
- first actor receives sexualized signal
- wrong-category classification applied
- stronger pathway not activated
- notice not formed / aggregated
- duty suppressed
- continued exposure
- predictable downstream harm
- comparator proves capacity
- non-application becomes breach at intake

STATUTORY + REGULATORY HOOKS (CLASSIFICATION-STAGE → INTAKE)

1. Title IX of the Education Amendments of 1972 — 20 U.S.C. § 1681(a)

sex-based conduct in education program/activity

- triggers non-discrimination mandate
- requires institutional response architecture
- misclassification that removes conduct from sex-based category
- suppresses statutory protection at intake

2. 34 C.F.R. § 106.30 (Definitions)

sexual harassment / sex-based conduct definition

- sets qualifying signal threshold
- “possible sex-based conduct” is sufficient for routing obligation
- downgrade to “teasing / peer conflict”
- prevents entry into defined category
- statutory scope evaded at classification stage

3. 34 C.F.R. § 106.44(a) (Actual Knowledge / Response Duty)

recipient has knowledge of possible sex-based harassment

- must respond in a manner not deliberately indifferent
- intake classification determines whether “knowledge” is recognized
- downgrade / misrouting
- knowledge not operationalized
- duty suppressed at intake

4. 34 C.F.R. § 106.44(c) (Response Obligation — Pre/Post 2020 overlap logic)

notice of sexual harassment

- triggers obligation to respond promptly and appropriately
- wrong-category classification
- response occurs outside Title IX framework
- obligation not satisfied despite action

5. 34 C.F.R. § 106.8(a) (Designation of Coordinator)

institution must designate Title IX Coordinator to oversee compliance

- qualifying reports must be routed to Coordinator
- intake downgrade / local containment
- Coordinator bypassed
- compliance structure not activated

6. 34 C.F.R. § 106.8(c) (Grievance Procedures Requirement)

institution must adopt and publish grievance procedures for sex discrimination

- procedures only activate if conduct is classified correctly
- misclassification
- grievance system never triggered
- procedural rights denied at intake

7. 34 C.F.R. § 106.45 (Formal Complaint Process — 2020 framework)

sexual harassment complaint

- requires investigation, recordkeeping, determination
- classification determines eligibility
- downgrade
- no formal complaint pathway
- no investigation / no record formation

8. 34 C.F.R. § 106.71 (Retaliation + Interference)

interference with rights under Title IX prohibited

- structural suppression of reporting / classification
- interference with access to protections
- downgrade operates as functional interference

OCR ENFORCEMENT PRINCIPLES (REGULATORY INTERPRETATION)

U.S. Department of Education Office for Civil Rights — Guidance + Findings

possible sex-based conduct

- must be evaluated under Title IX framework
- wrong-category response (Carmel)

- does not satisfy Title IX obligation
- classification precision required for compliance

fragmented routing / non-Title IX handling (San Diego)

- prevents aggregation and pattern recognition
 - suppresses legally actionable notice
 - constitutes compliance failure
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TORT / STATE-LAW PARALLEL (NON-TITLE IX PATH)

Negligence (Duty of Care — School Context)

foreseeable harm to student

- school assumes supervisory duty
 - intake classification controls response pathway
 - misclassification = failure to exercise reasonable care
 - breach at first control point
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Negligent Supervision / Failure to Protect

school aware of risk signal

- must take reasonable protective action
 - downgrade / non-escalation
 - continued exposure
 - liability attaches through failure to intervene
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Negligent Infliction of Emotional Distress (NIED)

foreseeable emotional harm from peer sexualized conduct

- school fails to act appropriately
 - harm continues
 - emotional injury linked to institutional inaction
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CIVIL RIGHTS PARALLEL (42 U.S.C.)

42 U.S.C. § 1983 (Deprivation of Rights)

state actor (public school)

- deprivation of federal rights under color of law
 - selective non-application of protection
 - unequal treatment in classification and safeguarding
 - potential constitutional claim (equal protection / due process theory)
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CLEAN STATUTORY COMPRESSION

qualifying sex-based signal

- Title IX definition met (34 C.F.R. §106.30)
- knowledge attaches (106.44)
- must route to Coordinator + grievance system (106.8 / 106.45)

IF:

signal

- downgraded / misclassified
- routed outside Title IX

THEN:

- statutory framework never activates
- notice not formed
- aggregation suppressed
- duty not executed

RESULT:

classification-stage failure = statutory compliance failure + potential tort breach at intake

FINAL LOCK

statutes do not require:
proof of bad intent

they require:

proper classification → proper routing → proper response

failure at classification

→ collapses the entire statutory protection chain at the point of intake

→ makes liability attach upstream, not just post-harm